

Court No. - 39

Case :- WRIT - C No. - 9276 of 2021

Petitioner :- Nazim Hussain

Respondent :- Pashchimanchal Vidyut Vitran Nigam Limited
And 2 Others

Counsel for Petitioner :- Rizwan Ahmad(Qureshi),Hina Shafiq

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra has put in appearance on behalf of the respondent.

He has prayed for and is granted two weeks time to seek instructions to indicate as to whether final assessment order has yet been passed or not.

Put up on **26.03.2021** as fresh.

Order Date :- 25.3.2021

Madhurima

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Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

The petitioner herein seeks to challenge the provisional assessment order dated 02.09.2020 with the contention that he had filed an objection on 19.2.2020 but the same has not been decided till date.

Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra learned counsel is present on behalf of the respondents.

A copy of the written instructions has been supplied to the Court to assert that the petitioner has not filed any objection to the provisional assessment order dated 2.9.2020.

However, the final assessment order, if any, or the demand notice issued by the respondent no.2 has not been placed before the Court.

At this stage, learned counsel for the petitioner states that the petitioner may be given one opportunity to place his objection and hearing be accorded to him in accordance with the provision of Clause 8.1(a)(b) of U.P. Electricity Supply Code, 2005.

In view of the above, without entering into the merits of the claim of the parties, the present petition is being **disposed of** with the following directions:

(1) The petitioner shall approach the respondent no.2 by filing an objection within a period of three weeks from today along with the copy of this order.

(2) In case such an objection is filed, the respondent no.2 shall be under obligation to take a decision by passing a reasoned and speaking order in accordance with law dealing with all points of objection.

(3) The final assessment order or the demand notice, if issued,

shall be subject to the fresh decision to be taken by the respondent no.2

(4)In case, the petitioner fails to file the same within the time given above, it would be open for the respondents to proceed in accordance with law.

Order Date :- 26.3.2021

Harshita